

TENTATIVE RULINGS FOR September 8, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

SAWER
v.
MORONGO UNIFIED SCHOOL DISTRICT, et al.
CIVSB2511251

Motion: Demurrer to FAC
Movants: Defendant Morongo Unified School District
Respondent: Plaintiff Jacob Sawer, a minor, by and through his mother and guardian ad litem Sharika Sawer

PROCEDURAL/FACTUAL BACKGROUND

On April 23, 2025, plaintiff Jacob Sawer, a minor, by and through his mother and guardian ad litem Sharika Sawer (Plaintiff) initiated the instant action against defendants Morongo Unified School District (the District) and Does 1-50. The operative Complaint alleges seven causes of action for: (1) negligence, (2) bullying- negligent infliction of emotional distress, (3) excessive force, (4) intentional infliction of emotional distress, (5) negligent supervision, (6) failure to protect/breach of special relationship, and (7) punitive and exemplary damages. The Court sustained the Demurrer to the Complaint to the second, third, fourth, and sixth causes of action with leave to amend and sustained the demurrer to the fifth cause of action without leave to amend.

Now before the Court is Defendant's demurrer to the FAC's second cause of action for violation of Seth's Law. Plaintiff opposes and agrees to withdraw the second cause of action without prejudice but argues that the demurrer should be overruled as to the negligence per se allegation. Plaintiff also requests leave to amend the first cause of action for negligence to incorporate the Seth's Law violation and the negligence per se allegations. Defendant replies and argues that the demurrer should be sustained without leave to amend.

APPLICABLE LAW AND ANALYSIS

Demurrer

Meet and Confer Efforts

The Court finds that Defendant's efforts to meet and confer with Plaintiff are satisfactory.

Standard of Review

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Kendrick v. City of Eureka* (2000) 82 Cal.App.4th 364, 367; *Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) Generally, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court assumes the truth of all material facts that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

General Demurrer

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must be liberally construed with a view to substantial justice between the parties." (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

A demurrer for failure to state a cause of action should be sustained only where the facts alleged on the face of the complaint fail to state any valid claim entitling the plaintiff to relief. The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Special Demurrer

A complaint may also be challenged on demurrer for uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) Demurrers for uncertainty are not favored, and this challenge is generally sustained only where the complaint is so ambiguous or unintelligible the defendant cannot reasonably respond. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Ibid.*) (Internal citations omitted.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].)

Leave to Amend

Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) "Liberality in permitting amendment is the rule; if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37

Cal.App.4th 1217, 1227.) This does not mean that leave to amend should always be granted. “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436.)

The Second Cause of Action for “Bullying”.

A public entity may be liable for an injury directly resulting from its own conduct or omission, but only as provided by statute.¹ (Gov. Code, §815; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1131; *Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457.) It also can be liable under the vicarious liability theory for the acts and omissions of its employees who act within the course and scope of their employment/agency if the act or omission would give rise to a cause of action against the employee. (Gov. Code, §§815.2, subd. (a); *Adams v. Department of Corrections & Rehabilitation* (2024) 98 Cal.App.5th 954, 959.) In either case, the statute or enactment establishing a basis for liability must be identified. (*Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 802.)

Here, yet again, Plaintiff’s negligence claim is pled as being under Education Code sections 234.1-234.5 (§24). Plaintiff has in substance maintained the same allegations that this Court previously sustained the demurrer.

Yet again, the Court finds that Education Code sections cited by Plaintiff do not provide for liability against the District, therefore, the Demurrer to Second Cause of Action is sustained. In addition, the Court again finds that the 2nd cause of action is duplicative of the allegations contained in the 1th cause of action and is also sustained on this alternate grounds. A demurrer can be sustained to a cause of action that is duplicative of another and adds nothing new by way of fact or theory. (*Shoemaker v. Myers* (1990) 52 Cal.3d 1, 24; *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290.)

The Court denies Plaintiff’s request for leave to withdraw the 2nd cause of action without prejudice.

In addition, the Court finds negligence per se is not applicable to Education Code sections 234 -234.5. Education Code section 234 states:

(a) This article shall be known, and may be cited, as the Safe Place to Learn Act.

(b) It is the policy of the State of California to ensure that all local educational agencies continue to work to reduce discrimination, harassment, violence, intimidation, and bullying. It is further the policy of the state to improve pupil safety at schools and the connections between pupils and supportive adults, schools, and communities.

Section 234.1 requires that the Department of Education assesses whether local educational agencies have adopted certain policies and procedures regarding bullying. Sections 234.2 through 234.5 require that the Department of Education disclose certain information relating to discrimination, harassment, and bullying. (*See* Education Code sections 234.2-234.5.) These regulations apply to the Department of Education, not individual school districts, save for one provision which “encourage[s] school districts to inform students of resources available to combat ‘cyber sexual bullying.’” (*Id.* at section 234.2(c).) Even that subsection does not impose

¹ “Once again, a public entity cannot be held liable for common law negligence.” (*McCarty v. State of California Dept. of Transportation* (2008) 164 Cal.App.4th 955, 977.)

a mandatory duty on school districts nor does it create liability for the school district. Therefore, the Court finds that Education Code sections 234 through 234.5, cannot be a basis for negligence per se against the District.

Finally, the Court sustains the Demurrer to the 2nd cause of action **without** leave to amend.

RULING

The Court rules as follows:

- (1) Sustains the District's demurrer to the second cause of action **without** leave to amend; and
- (2) Defendant, as the prevailing party, is ordered to give formal notice of the Court's ruling.

Dated: September 8, 2026

Judge Quintana Winter